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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1-5,

Defendants.

Case No.: 8:22-cv-01727-FWS-ADS

PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE WHY ACTION SHOULD NOT BE DISMISSED FOR LACK OF PROSECUTION

Dept.: 10D
Judge: Hon. Fred W. Slaughter

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Plaintiff Miguel Lerma ("Plaintiff") responds to the Court's Order to Show Cause Why Action Should Not Be Dismissed for Lack of Prosecution (Dkt. No. 43) ("OSC"). In the OSC the Court states, "On May 26, 2023, the court granted Defendants' motions and ordered Plaintiff to file a Second Amended Complaint, if any, within thirty days, or by June 26, 2023. (Dkt. 36.) As of the date of this Order, Plaintiff has not filed any amended pleading, leaving it unclear which claims Plaintiff intends to pursue." Id. at 1. In short, Plaintiff does not intend to file a Second Amended Complaint and will only proceed with the Second claim in the First Amended Complaint ("FAC") brought against defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together "**Amazon**") under the California Fair Chance Act.

On December 15, 2022 Amazon filed a Motion to Dismiss the First claim (Cal. Pen. Code § 290.46, California Penal Code ("**Megan's Law**")) and the Fifth claim (California Business & Professions Code §17200, Unfair Competition Law ("**UCL**")) in the FAC ("Amazon's Motion") in the FAC, and defendant Accurate Background, LLC ("**Accurate**") filed a Motion to Dismiss the First claim (Megan's Law), Third claim (Cal. Civ. Code § 1786.18, Investigative Consumer Reporting Agencies Act ("**ICRAA**")), Fourth claim (15 U.S.C. § 1681b(b)(1), Fair Credit Reporting Act ("**FCRA**"), and Fifth claim (UCL) in the FAC ("Accurate's Motion"). In Amazon's Motion, Amazon did not move to dismiss the Second claim in the FAC for violations of Cal. Gov. Code § 12952, the **Fair Chance Act**.

In response to the Motions Plaintiff voluntarily dismissed the Third claim (ICRAA claim) against Accurate pursuant to Federal Rule of Civil Procedure 41(a). *See* Order Granting Motion to Dismiss, Dkt. No. 36, at 7 of 14. The Motions were fully briefed, and on May 26, 2023 the Court granted the Motions in their entirety, dismissing the First, Fourth, and Fifth claims, and acknowledged that Plaintiff voluntarily dismissed the Third claim. The Court also granted thirty (30) days leave to amend the First, Fourth, and Fifth claims. Specifically, the Court stated, "Plaintiff

must file a Second Amended Complaint, *if any*, within thirty (30) days of the date of notice of this Order." Order Granting Motion to Dismiss, Dkt. No. 36, at 14 of 14 (italics added). The Court did not require that Plaintiff filed a Second Amended Complaint.

Based on the findings and rationale set forth in the Court's Order dismissing First, Fourth, and Fifth claims, Plaintiff opted to not file a Second Amended Complaint and only proceed with the Second claim against Amazon under the Fair Chance Act. Therefore, only the second claim against Amazon for violations of the Fair Chance Act remains, and Plaintiff intends to pursue this Second claim only against Amazon. *See* Rutter Group Prac. Guide Fed. Civ. Pro. Before Trial Ch. 9-D, Motions to Dismiss (Rule 12(b)), at 9:304-9:307 ("Defendant's options: As to the claims not dismissed, defendant has several options:… Answer: The usual option selected by defendants is to file an answer to the claims remaining in the action after all challenges to the complaint have been exhausted.").

Based on the foregoing, Plaintiff respectfully requests that the Court vacate the OSC and allow the FAC and the remaining Second claim under the Fair Chance Act to proceed.

Dated: August 14, 2023

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